

STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR EXAMINERS 1560 Broadway, Suite 1350 Denver, CO 80202	^ BOARD USE ONLY ^
STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR EXAMINERS, Petitioner, vs. KAREN E. COHEN, LPC, License No. 3552; CAC III, Certification No. 5793 Respondent	Case Number: PCE 2010-0003
FINAL AGENCY ORDER	

THIS MATTER comes before the State Board of Licensed Professional Counselor Examiners (the "Board"). The Board, in accordance with the provisions of Article 43, Title 12, Mental Health Practice Act, of the Colorado Revised Statutes (hereinafter the "Act") and the Administrative Procedures Act (the "APA"), having reviewed the Initial Decision Upon Default issued by Administrative Law Judge, Matthew E. Norwood ("ALJ"), related briefs, the exhibits, and the relevant authorities, now makes the following Final Agency Order:

PROCEDURAL HISTORY

1. On August 17, 2010, the Board filed its Notice Of Duty To Answer, Notice To Set, Notice Of Hearing, Notice Of Charges, And Option To Engage In Alternative Dispute Resolution ("Notice").
2. The Notice generally alleged the following against Respondent:
 - a. July 19, 2002 - addiction counselor III (CAC III) certification number 5793 issued to Respondent.

- b. August 30, 2003 - professional counselor license number 3552 issued to Respondent.
- c. August 27, 2008 - letter of admonition issued to Respondent.
- d. August 31, 2009 - Respondent's professional counselor license lapsed.
- e. December 14, 2009 – Respondent applied for reinstatement of her professional counselor license.
- f. On the application, Respondent admitted to practicing as a professional counselor after her license lapsed.
- g. On the application, Respondent denied ever being issued a letter of admonition.

3. In the Notice, the Board sought an order revoking Respondent's license to practice as a professional counselor based on two counts:

- a. Count I: Practicing professional counseling without a license in violation of C.R.S. § 12-43-222(1)(b) and (g).
- b. Count II: Failing to report the letter of admonition on an application in violation of C.R.S. § 12-43-222(1)(b) and (s) as well as Colorado State Board of Licensed Professional Counselor Examiners Rule 15.

4. The Notice provided that an answer was due within 30 days of August 17, 2010, approximately September 17, 2010. The Notice expressly states: "If you fail to file your written answer within 30 days, an order entering a default decision may be issued for the relief requested in the Notice of Charges, or for such other penalties as may be provided for by law, without further notice."

5. On October 4, 2010, the Board moved the Office of Administrative Courts for an order of default against the Respondent. Attached to the Order was an affidavit attesting to proper service.

6. On October 13, 2010, the Office of Administrative Courts set the matter for a full day hearing on March 14, 2011.

7. On October 20, 2010, ALJ issued the Entry of Default against Respondent, deeming that allegations contained in the Notice as admitted. The Entry Of Default expressly provides:

Respondent shall have 10 days from the entry of this order to show good cause why this default should be set aside. In the absence of such a showing, the undersigned will enter an initial decision including Findings of Fact, Conclusions of Law, and appropriate orders, sanction or relief, including disciplinary action, based solely on the Notice of Charges, motion for entry of default, and the supporting documents submitted by the Board.

8. On November 5, 2010, the ALJ entered an Initial Decision Upon Default, revoking Respondent's license to practice as a professional counselor.

9. On December 17, 2010, Respondent sent a facsimile to the Board, titled "appeal". The "appeal" is one paragraph long and states as follows: "I would like to appeal the above case. There have been redundancies as I have answered these charges several times. I was hoping for the March 14th arrangement so that I could bring all this paperwork and get these problems and contradictions removed. I at no time acted illegally."

ANALYSIS

10. C.R.S. § 12-4-105(2)(b) provides that if any respondent fails to answer an administrative notice within thirty days after service, the ALJ may enter a default. The ALJ acted in accordance with the statute.

11. C.R.S. § 12-4-105(15)(a)(II) provides that a respondent seeking to reverse or modify an ALJ decision will have twenty days after service of an initial decision to file a designate of record. The Respondent has never filed a designation of record.

12. C.R.S. § 12-4-105(14)(a)(II) provides that a respondent will have thirty days after service of an initial decision to file exceptions to an initial decision. The Respondent has never

filed exceptions and the one-page "appeal" does not suffice. *Lanphier v. Department of Pub. Health & Env't*, 179 P.3d 148, 151-53 (Colo. App. 2007).

13. C.R.S. § 12-4-105(14)(b)(III) provides that if a respondent fails to file exceptions, the initial decision shall become the decision of the agency.

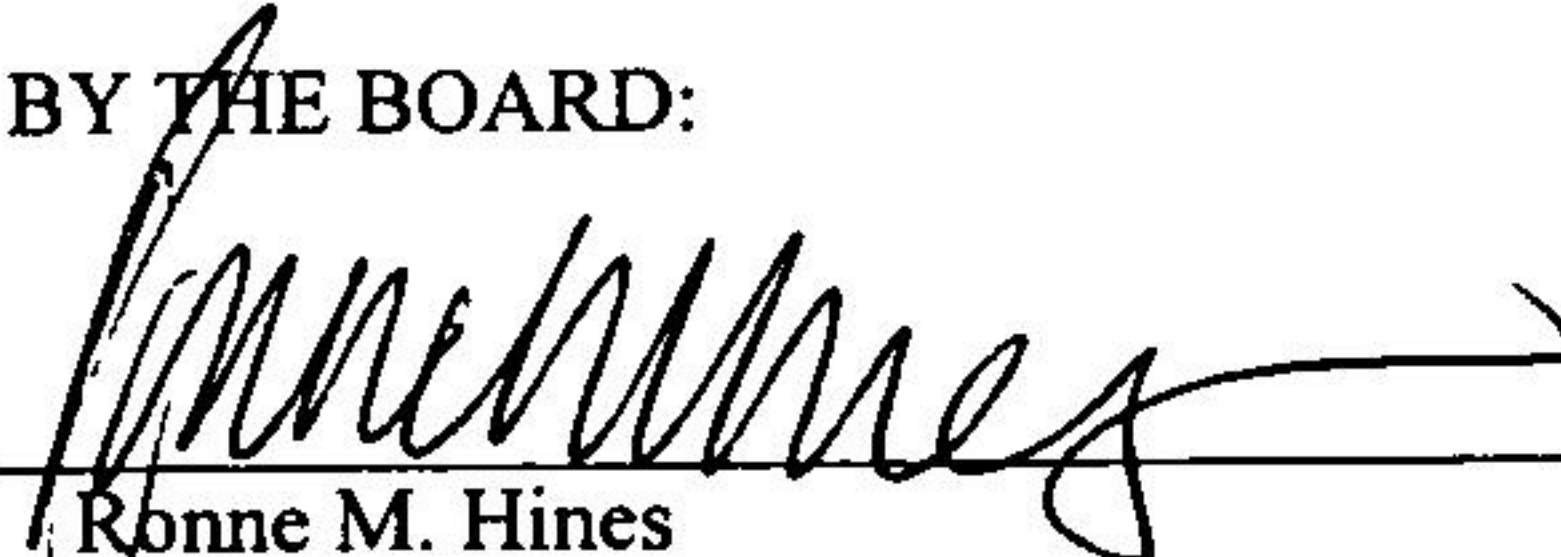
14. Because the Respondent did not file a designation of record or exceptions within the time permitted by statute, the ALJ's Initial Decision has become the Final Decision of the Board.

CONCLUSION

15. For the reasons stated herein, the Initial Decision of the ALJ is hereby adopted by the Board. The Respondent's license to practice as a professional counselor is revoked.

Dated this 8th day of February 2011.

BY THE BOARD:



Ronne M. Hines
Program Director